

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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ABU QUICK

Plaintiff,

SUMMONS

against-

Index No. _____

NEW YORK CITY POLICE DETECTIVE DANIEL MIDDLETON,
Shield #6957, in his individual official capacity as employee of the City
of New York, NEW YORK CITY POLICE DETECTIVE JOEL BAY,
Queens South Homicide, in his individual official capacity as employee
of the City of New York, NEW YORK CITY POLICE LIEUTENANT
KEN FALEN, Tax ID no. 919558 ,103rd Precinct, in his individual official
capacity as employee of the City of New York, CITY OF NEW YORK

Defendants.

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED: to answer the complaint in this action and to serve a copy
of your answer, or if the Complaint is not served with this Summons, to serve Notice of Appearance, on
the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of
service (or within 30 days after the service is complete if this summons is not personally delivered to you
within the State of New York); and in case of your failure to appear or answer, judgment will be taken
against you by default for the relief demanded herein.

Dated: Brooklyn, New York

January 20, 2022

Attorney(s) for the Plaintiff

Douglas G. Rankin, Esq.
Reg #2978831
175 Pearl Street, Suite 215
Brooklyn, New York 11201
Phone: (718) 858-3000
Fax: (718) 858-9615

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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ABU QUICK

Plaintiff,

COMPLAINT

against-

Index No. _____

NEW YORK CITY POLICE DETECTIVE DANIEL MIDDLETON,
Shield #6957, in his individual official capacity as employee of the City
of New York, NEW YORK CITY POLICE DETECTIVE JOEL BAY,
Queens South Homicide, in his individual official capacity as employee
of the City of New York, NEW YORK CITY POLICE LIEUTENANT
KEN FALEN, Tax ID no. 919558 ,103rd Precinct, in his individual official
capacity as employee of the City of New York, CITY OF NEW YORK

Defendants.

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The Plaintiff, Abu Quick, through his attorney Douglas G. Rankin, Esq., alleges the following,
upon information and belief for this Complaint:

INTRODUCTION

1. This is a civil rights action for money damages brought pursuant to 42 U.S.C. §§§ 1981, 1983, and 1988, the Fourth, Eighth and Fourteenth Amendments of the United States Constitution, against the police officer mentioned above in their individual capacities, and against the City of New York.
2. It is alleged that the that these defendants maliciously prosecuted, violating his rights under the Fourth, Eighth and Fourteenth Amendments to the United States Constitution. It is further alleged that these violations and torts were committed as a result of policies and customs of the City of New York.
3. Plaintiff seeks compensatory and punitive damages, affirmative and equitable relief, an award of attorneys' fees and costs, and such other relief as this Court deems equitable and just.

STATUTE OF LIMITATIONS TOLLED

4. The statute of limitations period applicable to §1983 suits is three (3) years from date

of accrual. The statutes of limitation were “tolled” in New York by Executive Order No. 202.8, issued by Governor Andrew M. Cuomo on March 20, 2020, in response to the COVID-19 pandemic. Over the next six-and-a-half months, that toll was renewed by further executive order every 30 days until, on October 4, 2020, the Governor issued Executive Order No. 202.67, announcing that the tolling order would be extended for only one more 30-day period “until November 3, 2020, and after such date [statutes of limitation] will no longer be tolled.” On November 3, 2020, the Governor issued Executive Order No. 202.72, confirming that the tolling period would no longer be in effect beginning November 4, 2020. A total tolling period of 228 days. Plaintiff was acquitted of all charges on June 18, 2018.

PARTIES

5. Plaintiff was at all material times a resident of Queens, New York and of proper age to commence this lawsuit.
6. Defendant New York City Police Detective Daniel Middleton (hereinafter “Det. Middleton”) was at all times relevant to this complaint duly appointed Detective of the Police Department of the City of New York, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs, and usages of the State of New York and/or the City of New York.
7. Defendant New York City Police Detective Joel Bay (hereinafter “Det. Bay”) was at all times relevant to this complaint duly appointed Detective of the Police Department of the City of New York, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs, and usages of the State of New York and/or the City of New York.
8. Defendant New York City Police Lieutenant Ken Falen (hereinafter “Lt. Falen”) was at all times relevant to this complaint duly appointed Lieutenant of the Police Department of the City of New

York, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs, and usages of the State of New York and/or the City of New York.

9. The City of New York (hereinafter "The City") is, and was at all material times, a municipal corporation duly organized and existing pursuant to the laws, statutes, and charters of the State of New York. The City operates the District Attorney's Office, Queens County and the N.Y.P.D. a department or agency of defendant City responsible for the appointment, training, supervision, promotion and discipline of assistant district attorneys and police officers, including the individually named defendant herein.
10. The City was at all material times the public employer of defendants named herein.

FACTUAL ALLEGATIONS

11. On June 18, 2018, the Plaintiff was acquitted at trial of murder charges after being incarcerated from December 29, 2014, to the day of acquittal.
12. The Plaintiff was arrested and prosecuted by the Defendants despite video surveillance showing the shooter was dark skin and the Plaintiff is light skin.
13. The clothing description of the shooter was inconsistent with the video as the former was orange cargo pants while the latter was white, gray and cream camouflage.
14. Defendants' eyewitness initially chose #6, a dark skin individual in the lineup, then outside of the viewing room and outside the presence of Plaintiff's attorney in a private discussion with the eyewitness allegedly changed his choice to #5 which was the Plaintiff.
15. The cell site information showed the Plaintiff was not present at the time of the shooting.
16. The police paperwork indicates that an eyewitness stated that the shooter was dark skin.

17. A 911 witness told the Queens County prosecutor that the shooter was dark skin.
18. The girlfriend of the deceased told the Defendants that an individual named "Marlo" and not the Plaintiff killed the deceased.
19. The brother of the deceased did not ID the Plaintiff in a lineup but instead picked out a dark skin individual as the perpetrator.
20. At the trial no witness identified the Plaintiff in court or in any line-up as the perpetrator of the crime.
21. The Defendants did not call their initial witness to testify at the trial.
22. Plaintiff was forced to hire private counsel to fight the unjust charges brought against him.
23. Three years (3), five months (5) and twenty (20) days after Plaintiff's arrest he was acquitted of murder in the second degree and criminal possession of a weapon in the second degree (2counts) and all charges were dismissed.
24. Plaintiff's false imprisonment and malicious prosecution did cause humiliation and emotional and financial distress and did damage to Plaintiff's professional reputation within the community, prior to this incident Plaintiff had no criminal record.

COUNT ONE

42 U.S.C. § 1983

Malicious Prosecution

**Against Individual Defendants Detective Daniel Middleton,
Detective Joel Bay and Lieutenant Ken Falen**

25. Plaintiff repeats and realleges each and every allegation above as if fully set forth herein.
26. Defendants initiated a prosecution against Plaintiff
27. Defendants lacked probable cause to believe the proceeding could succeed

28. Defendants acted with malice, and
29. The prosecution was terminated in Plaintiff's favor
30. As a direct and proximate result of the malicious prosecution detailed above, Plaintiff sustained the damages herein alleged.

COUNT TWO**42 U.S.C. § 1983****False Imprisonment****Against Individual Defendants Detective Daniel Middleton,
Detective Joel Bay and Lieutenant Ken Falen**

31. Plaintiff repeats and realleges each and every allegation above as if fully set forth
32. Defendant's intent to confine Plaintiff,
33. Plaintiff was aware of the confinement,
34. Defendants lacked consent to in the confining of Plaintiff; and
35. Plaintiff's confinement was not privileged
36. As a direct and proximate result of the malicious prosecution detailed above, Plaintiff sustained the damages herein alleged.

COUNT THREE**42 U.S.C. § 1983****Against Defendant City**

37. Plaintiff incorporates by reference the factual allegations set forth above as if fully set forth herein.
38. Prior to the date of the incident alleged herein, the City of New York developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of persons in New York, which caused the violation of plaintiff's rights.

39. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen complaints of widespread, systemic police misconduct, and such acts of misconduct have instead been allowed by the City of New York.
40. It was the policy and/or custom of the City of New York to inadequately supervise and train its police officers, including the defendant officer, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The City of New York did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.
41. It was the policy and/or custom of the City of New York to inadequately supervise and train its assistant district attorneys, thereby failing to adequately discourage further constitutional violations on the part of its assistant district attorneys. The City of New York did not require appropriate in-service training or retraining of assistant district attorneys who were known to have engaged in misconduct.
42. The effects of any in-service training and re-training of officers and assistant district attorneys known to have engaged in misconduct were wholly negated by the rampant culture of misconduct and impunity sanctioned by the command structure of the New York City Police Department, New York City District Attorney's Office, and the City of New York.
43. As a result of the above-described policies and customs, police officers and assistant district attorneys of the City of New York, including the Defendant, believed that his actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be allowed.
44. The above-described policies and customs demonstrated a deliberate indifference on the part of policymakers of the City of New York to the constitutional rights of persons within the City and were the cause of the violations of Plaintiff's rights alleged herein.

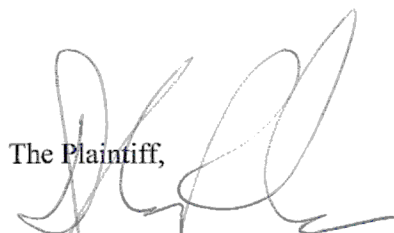
PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests that this Court:

- (a) Award compensatory damages against the Defendants, jointly and severally.
- (b) Award punitive damages against the individual Defendants, jointly and severally.
- (c) Award costs of this action to the Plaintiff.
- (d) Award reasonable attorneys' fees and costs to the Plaintiff pursuant to 28 U.S.C. § 1988.

DATED: Jan 20, 2022
Brooklyn, New York

The Plaintiff,



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Detective Squad
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Richmond Hill, NY 11418
(212) 678-1811

Defendant New York City Police Detective Joel Bay
New York City Police Department - 102nd Precinct
Queens South Homicide
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Richmond Hill, NY 11418
(212) 678-1811

Defendant New York City Police Lieutenant Ken Falen
New York City Police Department-102nd Precinct

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Defendant City of New York
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